

		service other than personal service. The proof of service Petitioner filed shows service was made by email. That is not sufficient. Respondent, however, has waived or corrected these deficiencies. Respondent states it does not oppose being ordered to arbitration. Respondent included as part of one of its exhibits to the opposition a declaration Petitioner's counsel apparently served on Respondent regarding the non-existence of any worker's compensation claim. And Respondent filed an opposition without any objection to the method of service, thereby waiving the service defect. Accordingly, based on Respondent's agreement and willingness to submit the claim to arbitration, the petition is GRANTED and Respondent, along with Petitioner, are ordered to submit their underinsured motorist dispute to arbitration in accordance with Plaintiff's insurance policy with Respondent. Petitioner's petition also includes a request for attorney fees, but fails to cite any statutory or contractual basis for an attorney fee award. Moreover, to the extent there was any legal basis for an award of attorney fees, Petitioner failed to present in evidence to establish an amount to be awarded, such as a declaration by counsel or billing statements. Accordingly, the request for attorney fees is DENIED. Petitioner's counsel is ordered to give notice of this ruling.
9.	<i>Buchalter, A Professional Corporation vs. Clark</i> 2025-01529125	OFF CALENDAR based on request for dismissal filed on May 19, 2026.
10.	<i>Michael A Plaia vs. Alina V Plaia</i> 2020-01175527	Before the court is the motion of judgment creditor Michael A. Plaia (Creditor) to compel further responses from judgment debtor Alina V. Plaia (Debtor) to Creditor's requests for production of documents, set one. As more full set forth below, the motion is GRANTED. As an initial matter, the court notes the proof of service for the motion lists an incorrect mailing address for Debtor (92 Brandisi versus 92 Brindisis). The motion, however, also was served on Debtor by email pursuant to an email service agreement between the parties, and at the same email address for Debtor as listed in the court's records. Moreover, Debtor filed an untimely opposition without

		objecting to service thereby waiving any service defect. The court thus determines the motion was properly served. Code of Civil Procedure section 708.030 provides, in relevant part: "(a) The judgment creditor may demand that any judgment debtor produce and permit the party making the demand, or someone acting on that party's behalf, to inspect and to copy a document that is in the possession, custody, or control of the party on whom the demand is made in the manner provided in Chapter 14 (commencing with Section 2031.010) of Title 4 of Part 4, if the demand requests information to aid in enforcement of the money judgment. The judgment debtor shall respond and comply with the demand in the manner and within the time provided by Chapter 14 (commencing with Section 2031.010) of Title 4 of Part 4. . . . [¶] (c) Inspection demands served pursuant to this section may be enforced to the extent practicable, in the same manner as inspection demands in a civil action." (Code Civ. Proc., § 708.030(a), (c).) Good cause has been shown for the documents sought by the requests as the requests are generally tailored to aid in enforcement of the money judgment in this matter. Debtor failed to file any timely opposition or otherwise offer sufficient argument and evidence justifying her objections. (<i>Coy v. Superior Court</i> (1962) 58 Cal.2d 210, 220-221; <i>Kirkland v. Superior Court</i> (2002) 95 Cal.App.4th 92, 98; <i>Costco Wholesale Corp. v. Superior Court</i> (2009) 47 Cal.4th 725, 733.) The court acknowledges Debtor filed an untimely opposition to the motion at 7:43 p.m., on May 19, 2026—i.e., less than 48 hours before the hearing. Debtor claims her opposition is untimely because she mis-calendared the hearing date as June 21, 2026, and therefore asks the court to consider it. The court does not find this explanation credible. The court previously cautioned all parties to take special care to ensure all documents are timely and properly filed and served because prior documents were previously filed and served in an untimely and improper manner leading to questionable requests to continue or put off hearings. (See July 17, 2025 Minute Order.) Accordingly, the court exercises its discretion not to consider the untimely opposition. Nonetheless, nothing in the opposition would change the court's ruling. The opposition acknowledges Creditor's right to conduct discovery in aid of enforcing the judgment, but asks the court to limit the requests in terms of scope and
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		relevant time period. Debtor points to the court's prior July 2025 ruling relating to subpoenas Creditor served, but nothing in that ruling limited Creditor's rights to seek discovery from Debtor. Debtor has not presented any evidence, authority, or argument that supports her request to narrow the requests. The court finds the time period sought to be appropriate, and there is nothing inappropriate about Creditor seeking from Debtor any documents in Debtor's possession, custody, or control relating to an entity in which she may hold an interest. The request is appropriately directed to Debtor, not a third party, and requires Debtor to produce documents in her possession, custody, or control. Based on the foregoing, the motion is GRANTED. Debtor is ordered to serve verified, code-compliant, further written responses without objections to the subject discovery and to produce all responsive documents within her possession, custody, and control all within 30 days of service of notice of this order. Sanctions are warranted as Debtor did not timely oppose the motion and nonetheless failed to offer any substantial justification for her failure to fully respond to the subject discovery. (Code Civ. Proc., § 2031.310(h).) The court imposes a reasonable monetary sanction of \$1,947.50 against Debtor, payable to Creditor, through his counsel of record, within 30 days of service of notice of this order. Counsel for Creditor is ordered to give notice of this ruling.
11.	<i>In Re: Monarch Bay Terrace Property Owners Association</i> <i>2026-01547636</i>	Before the court is the "Petition to Approve Amendment to Consolidate Homeowners Association CC&R'S by Reducing Required Voting Percentage [Corp. Code § 7515]" filed on February 13, 2026, by petitioner Monarch Bay Terrace Property Owners Association (Petitioner). As more fully set forth below, the petition is DENIED for Petitioner's failure to provide adequate and proper notice as ordered by the court. Upon filing the petition, Petitioner filed a request for an ex parte order setting the hearing on the petition. On March 10, 2026, after hearing from Petitioner about the governing law and further discussing with Petitioner how to give notice of this hearing, the Court signed the "Order Setting Hearing on Petition and Notice Requirement" setting forth the specific requirements for Petitioner to provide